

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DCCED

Date: 5/12/2026

Bill Number: HB 314 am

Short Title (as it appears on BASIS): Arch, Eng, Surveyors; Reg Int Design

What action do you recommend the Governor take?

Select one.

☐ SIGN ☒ VETO ☒ LWOS

** Depends on whether the board extension can be added to and passed in SB 211, see below.*

Action Justification – Why do you recommend the above action?

Please be specific.

We'd recommend vetoing the bill **only if** we are successful in getting the extension of the Board of Registration for Architects, Engineers, and Land Surveyors ("board") into SB 211 and the bill passes. If that occurs, then this legislation will expand government unnecessarily as it will create an interior design registration (license) that is optional, and for a profession that does not impact public safety. The Governor vetoed Sen. Claman's SB 54 last year, which was very similar to this bill (though Rep. Prax is under the impression that the reasons for the veto have been fixed in this version).

If the board's extension does not get added to SB 211, then we'd recommend LWOS as the board will terminate if it's not extended by June 30th (since it technically sunset on June 30, 2025, and is in its one-year wind down period). Losing the board will create higher costs for subject expert contractors to take on the work currently completed by volunteer board members. Additionally, it would create a significant amount of unnecessary work for the department to shift to operating without a board and then inevitably reestablishing the board.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this

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bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

HB 314 is identical to Sen. Claman’s SB 246, which is almost identical to SB 54 that was vetoed by the Governor last year. Rep. Prax has testified that this version fixes the issues that led to the veto.

HB 314/SB 246 appear to be a second attempt to enact legislation primarily for the purpose of creating the interior designer registration under the Alaska Board of Registration for Architects, Engineers, and Land Surveyors (“board”), though it also makes some additional changes to law such as extending the board’s sunset date (which was on June 30, 2025), makes changes to the board’s membership, and adds two license exemptions. One for persons authorized by DEC to construct, install, or modify a conventional onsite wastewater system. The other for a utility that owns, operates, manages, or controls a pipeline that furnishes by transmission or distributes natural or manufactured gas to the public for compensation and who practices engineering on the facilities of the pipeline that operate at a pressure greater than 100 pounds per square inch gauge in one of the several circumstances.

We maintain the position that the primary goal of this bill – creating the registered interior designer license type – does not align with the Governor’s priorities since it’s expanding government and regulation without a benefit to public safety, health or welfare. The goal of the registration is to allow interior designers who want the ability to seal certain documents to do so. Because this bill does not require interior designers to be registered unless they want to seal documents (as can be confirmed by Section 7), and the ability to allow them to seal documents could be done without a registration, this interior designer registry will simply be for “prestige” for interior designers who want to use the “registered” title. The division has told Sen. Claman and relevant associations for years that if interior designers want to do code work, there could simply be an allowance for that without the creation of the license (i.e., specify in law that an interior designer who holds a national certification can perform certain work) without growing government by creating an interior designer registration type, but Senator Claman hasn’t been supportive of that idea.

The parts of this bill the division is supportive of are:

- *Section 2:* Extending the board from June 30, 2025, to June 30, 2033. The board is technically in its one-year wind down period right now, so if its termination date is not extended by June 30, 2026, the board will sunset and the division will need to take on all its licensing and regulatory duties. Because our division does not have any expertise in these industries, this would require contracting with industry professionals until the board is reestablished – all of which would come with significantly increased costs for this licensing program.
- *Section 5:* Specifying the Executive Administrator (EA) position is a range 23, which is the current range of the position, but codifying it in statute would align with other boards’ EA statutes and would align with a recommendation from DOP to avoid future issues.

The division defers to subject matter experts in the other departments on the proposed changes in

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Sections 33-42 as those statutes do not fall under our agency and we cannot speak to the impact.

The division does not agree with expanding government for the sake of status, nor does that align with the Governor’s vision for the state. However, the board is desperately needed, so we need it to be extended before June 30, 2026.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1 Amends AS 02.15.155 – under *Alaska Aeronautics Act of 1949: project costs defined* – to add reference to land surveying, landscape architectural, and registered interior design services. The statute currently only refers to architectural, engineering, or other special services.

Section 2 Amends AS 08.03.010(c)(3) – under *termination dates for regulatory boards* – to extend the termination date of Board of Registration for Architects, Engineers, and Land Surveyors (“board”) from June 30, 2025, to June 30, 2033.

-- Sections 3-32 amend sections of AS 08.48: Architects, Engineers, Land Surveyors, and Landscape Architects --

Section 3 Amends AS 08.48.011(b) – under *board created* – to change the membership of the board by:

- Replacing the two civil engineers, one mining engineer, one electrical or mechanical engineer, and one engineer from another branch with “five engineer [seats] from different branches of engineering, including civil, chemical, electrical, mining, mechanical, or petroleum engineering”;
- Reducing the land surveyors seats from two down to one; and
- Replacing the other engineer seat with a seat for one interior designer.

Section 4 Amends Section 3 to require the interior designer to be a registered interior designer effective March 31, 2026 (per Section 47).

Section 5 Amends AS 08.48.055(b) – under *executive administrator of the board; investigator* – to specify that the board’s Executive Administrator is a range 23 position.

Section 6 Amends AS 08.48.071(f) – under *records and reports* – to require the department to assemble statistics on the number of registered interior designers over a five-year period, as it does with all other professions under this board.

Section 7 Adds a new subsection (c) to AS 08.48.101 – *regulations; policy guidance; bylaws; code of ethics* – to require the board to adopt regulations establishing a definition of “interior design”, stating a person can practice interior design

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without a registration if they do not use the title “registered interior designer,” and requiring the board to adopt regulations establishing the type of documents a registered interior designer is authorized to sign and stamp with an official seal under AS 08.48.221 for the purpose of obtaining requisite permits for construction projects.

- Section 8 Amends AS 08.48.111 – *power to revoke, suspend, or reissue certificate* – to add reference to registered interior designers where other license types are already referenced, and to remove the requirement for the code of ethics or professional conduct to be distributed in writing to each of the board’s licensees and applicants.
- Section 9 Amends AS 08.48.171 – *general requirements and qualifications for registration* – to add reference to registered interior designers where other license types are already referenced.
- Section 10 Amends AS 08.48.181 – *registration upon examination* – to add reference to registered interior designers where other license types are already referenced.
- Section 11 Adds a new subsection (e) to AS 08.48.191 – *registration by comity or endorsement* – to allow a person certified in another state or country with similar requirements to Alaska to qualify for an Alaska interior designer registration by comity or endorsement.
- Section 12 Amends AS 08.48.201(a) – under *application for registration* – to add reference to registered interior designers where other license types are already referenced.
- Section 13 Amends AS 08.48.211(b) – under *certificate or registration* – to add reference to registered interior designers where other license types are already referenced.
- Section 14 Amends AS 08.48.215(a) – under *retired status registration* – to specify that retired status is only available for architect, engineer, land surveyor, and landscape architect licensees, not interior designers.
- Section 15 Creates a new section AS 08.48.218 – *untitled practice of interior design* – to allow for the practice of interior design by a person who is not registered, as long as they don’t use the title “registered interior designer.”
- Section 16 Amends AS 08.48.221(a) – under *seals* – to add reference to registered interior designers where other license types are already referenced.
- Sections 17-21 Amend AS 08.48.241(a), (b), (d), (e), and (f) – under *corporations, limited liability companies, limited liability partnerships, and limited partnerships* – to add reference to registered interior designers where other license types are already referenced.

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- Section 22 Amends AS 08.48.251 – *certain partnerships* – to add reference to registered interior designers where other license types are already referenced.
- Section 23 Adds a new subsection (c) to AS 08.48.281 – *prohibited practice* – to prohibit a non-registered interior designer from using a title to imply they are registered.
- Section 24 Amends AS 08.48.291 – *violations and penalties* – to add reference to registered interior designers where other license types are already referenced.
- Section 25 Amends AS 08.48.295(a) – under *civil penalty for unregistered or unauthorized practice* – to add reference to registered interior designers where other license types are already referenced.
- Section 26 Amends AS 08.48.311 – *rights not transferrable* – to add reference to registered interior designers where other license types are already referenced.
- Section 27 Adds a new subsection (b) to AS 08.48.321 – *evidence of practice* – to state a person conveys they’re a registered interior designer if they represent themselves to be a registered interior designer.
- Section 28 Amends AS 08.48.331(a) – under *exemptions* – to narrow the exemption under paragraph (a)(10), which currently allows an officer or employee of a firm who is practicing in one of the board’s regulated fields involved in the operation of the business, as long as they are not offering those services to the public. The amendment specifics that the officer or employee is not exempt if they are:
- Practicing engineering, architecture, land surveying, or landscape architecture on the buildings or structures whose primary use is public occupancy; or
 - Of a utility that owns, operates, manages, or controls a pipeline that furnishes by transmission or distributes natural or manufactured gas to the public for compensation and who practices engineering on all facilities of the pipeline that operate at a pressure greater than 100 pounds per square inch gauge in one of the listed manners.
- Section 28 also adds paragraph (a)(15) to exempt a person authorized to construct, install, or modify a conventional onsite wastewater system by DEC if the system services a commercial facility and has a design flow of less than 500 gallons of wastewater a day.
- Section 29 Adds new paragraphs (c) and (d) under AS 08.48.331 – *exemptions* – to allow DEC to adopt regulations limiting the locations in the state in which (a)(15) (amended by Section 28) apply; and to clarify that (a)(10)(B), amended in Section 28, does not apply in an emergency, but a utility must notify the RCA when an office or employee practice engineering in an emergency under this

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subsection.

- Section 30 Amends AS 08.48.341(4) – under *definitions* – to amend the definition of “certificate of authorization” to include registered interior design.
- Section 31 Amends AS 08.48.341(23) – under *definitions* – to amend the definition of “registrant” to put “professional” in front of “engineer,” “land surveyor,” and “landscape architect,” and to add “registered interior designer.”
- Section 32 Adds new paragraphs (27) and (28) to AS 08.48.341 – *definitions*:
- “Registered interior design” means the practice of interior design as a registered interior designer.
 - “Registered interior designer” means a person who is registered and qualified by education, training, experience, and examination to engage in the practice of interior design, as defined by the board, while using the title “registered interior designer,” and who is authorized to sign and stamp documents with an official seal under AS 08.48.221, as determined by the board, for purposes of obtaining requisite permits for construction projects.

-- Sections 33-43 amends statutes that do not fall under the board’s or division’s authority --

- Section 33 Amends AS 23.30.017(c)(1) – under *Alaska Workers’ Compensation Act: immunity for third-party design professional* – to add landscape architects and registered interior designers to the definition of “design professional.”
- Section 34 Amends AS 29.60.400(c) – under *Municipal Government: state programs: grants for community facilities* – to add reference to land surveying, landscape architectural, and registered interior design to the definition of “cost of construction.” The statute currently only refers to architectural, engineering, or other special services.
- Section 35 Amends AS 34.35.050 – *lien for labor or materials furnished* – to add landscape architects and registered interior designers as individuals who can perform services under a contract.
- Section 36 Amends AS 35.15.010(c) – under *construction by department* – to add landscape architects and registered interior designers to the definition of “professional services.”
- Sections 37-38 Amends AS 36.30.270(a) and (d) – under *State Procurement Code: architectural, engineering, and land surveying contracts* – to add landscape architectural and registered interior design services.
- Section 39 Amends AS 36.30.305(e) – under *State Procurement Code: limited competition procurements* – to add reference to landscape architectural and registered

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interior design contracts. The statute currently only refers to architectural, engineering, and land survey contracts.

- Section 40 Amends AS 36.30.990(19) – under *State Procurement Code: definitions* – to add reference to landscape architectural and registered interior design services in the definition of “preconstruction services.” The statute currently only refers to architectural, engineering, and land survey services.
- Section 41 Amends AS 36.90.100 – *Public Contracts: contracts for architectural, engineering, land surveying, or landscape architectural services* – to add registered interior design services.
- Section 42 Amends AS 46.07.040(c) – under *Village Safe Water Act: construction of facilities* – to add reference to landscape architectural and registered interior design services in the definition of “cost of the construction of a facility;” and remove that the costs of “are not limited to.” The statute currently only refers to architectural, engineering, and land survey services.
- Section 43 Repeals: AS 08.48.011(c) – under *board created* – which allows the Governor to appoint a petroleum or chemical engineer to fill the mining engineer board seat if no mining engineer qualifies and for the Governor to appoint a mechanical engineer to another engineer seat if an electrical engineer occupies the electrical/mechanical engineer seat, and vice-versa.
- Section 44 Creates a *TRANSITION: BOARD MEMBERS* section under uncodified law to require the interior designer initially appointed to the board to be certified by the Council for Interior Design Qualification and have resided in the state for at least two years. This person can continue to occupy the [registered] interior designer seat on the board until a registered interior designer is appointed (or the occupant obtains registration and is reappointed).
- This section also clarifies that the members currently in the board’s existing five engineers and one land surveyor may continue to serve until the remainder of their term, but that the engineers must then be replaced by someone that meets the qualifications of AS 08.48.011(b).
- Section 45 Creates a *RETROACTIVITY* section under the uncodified law to state Section 2 is retroactive to June 30, 2025.
- Section 46 Provides an immediate effective date for Sections 2, 3, 44, and 45.
- Section 47 Provides a March 31, 2026, effective date for all other sections of the Act.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any

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“rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

- Similar – Sen. Claman’s SB 54, vetoed by Governor Dunleavy in 2025
- Companion – Sen. Claman’s SB 246
- Riders – none

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support:

- Alaska Professional Design Council, John Pekar, P.E., President, AlaskaAPDC@gmail.com
- Amber Harper, Associate Designer at BDS Architects, amberH@bdsak.com
- Ashley Killian, Allied ASID, FF&E Specialist, Interior Designer, Explore Design, akillian@exploredesign.com, (907) 563-8474, (907) 306-6436
- Barbara Cash, FASID, IIDA, NCIDQ, bcash@best-yet.net, (907) 440-9190
- Bobbie Scanio, NCIDQ, ASID, Interior Designer, bobbies@ecialaska.gov, (907) 205-4374
- Charles Bettisworth, Senior Architect, Bettisworth North, (907) 456-5780
- Colin Maynard, PE, SE, F.NSPE, akbosco@aol.com, (907) 248-2831
- Dana Nunn, FASID, IIDA, NCIDQ, CCS, LEED AP, WELL AP, RID (TX), Interior Design Director, dnunn@bettisworthnorth.com, (907) 561-5780, (907) 771-4516
- Larry Cash, FAIA, lcash@best-yet.net, (907) 240-9474
- Mary G. Knopf, FASID, NCIDQ, Principal ECI Alaska, Retired, (907) 240-8964
- Melissa Pribyl, NCIDQ-certified Interior Designer, Owner, Explore Design, mpribyl@exploredesign.com, (907) 865-8231, (907) 350-3735
- Melissa Wiltfong, Interior Designer, wiltfong.melissa@gmail.com, (206) 909-0240

Opposition:

- Amy Wright, Founder, The Green Tape Measure, info@thegreentapemeasure.org, (919) 229-9864
- Elke Mazzeo, Interior Designer, elke.mazzeo@gmail.com

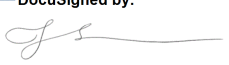
Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

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Unknown – we are also not recommending signing (LWOS or veto depending on factors noted above).

DocuSigned by:

Commissioner's Signature: _____ **Date:** 5/13/2026
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I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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